

SENATE BILL 1274

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 203, Part 1 and Title 68, Chapter 211,
Part 1, relative to environmental regulatory
programs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 68-203-103(b), is amended by deleting subdivision (1) and substituting:

(1) The fees under the Tennessee Safe Drinking Water Act of 1983, compiled in chapter 221, part 7 of this title, and the Water Quality Control Act of 1977, compiled in title 69, chapter 3, and fees for the production of oil and gas set under title 60, chapter 1, part 1, shall be set by the Tennessee board of water quality, oil and gas;

SECTION 2. Tennessee Code Annotated, Section 68-203-103(b), is amended by adding the following as a new subdivision:

() The fees under the Mineral Test Hole Regulatory Act, compiled in title 60, chapter 1, part 5, shall be set by the supervisor in accordance with § 60-1-505;

SECTION 3. Tennessee Code Annotated, Section 68-203-103(h)(7), is amended by deleting "eighteen dollars and seventy-five cents (\$18.75)" and substituting "thirty-eight dollars (\$38.00)".

SECTION 4. Tennessee Code Annotated, Section 68-211-103, is amended by adding the following as new subdivisions:

() "Coal combustion residuals" means fly ash, bottom ash, boiler slag, and flue gas desulfurization materials generated from burning coal for the purpose of generating electricity by electric utilities and independent power producers;

() "Coal combustion residuals disposal unit" means landfills, lateral expansions of landfills, surface impoundments, and locations used for the disposal, storage, processing, or treatment of coal combustion residuals and minor quantities of other associated industrial wastes, such as nonputrescible nonhazardous wastes resulting from operations ancillary to power generation, surface impoundment closure, and landfill construction;

SECTION 5. Tennessee Code Annotated, Section 68-203-103(h), is amended by deleting subdivision (9) and substituting:

(9) Filing and processing fees for solid waste landfill permits, except those issued to a coal combustion residuals disposal unit, as that term is defined in § 68-211-103: ten thousand dollars (\$10,000);

SECTION 6. Tennessee Code Annotated, Section 68-203-103(h), is amended by deleting subdivision (11) and substituting:

(11) Annual maintenance fee for a solid waste landfill, except a coal combustion residuals disposal unit, as that term is defined in § 68-211-103: fifteen thousand dollars (\$15,000);

SECTION 7. Tennessee Code Annotated, Section 68-203-104(d), is amended by adding the following as a new subdivision:

() For the division of mineral and geologic resources: environmental protection fees, fifty-eight percent (58%); state appropriations, forty-two percent (42%);

SECTION 8. Tennessee Code Annotated, Section 68-211-106, is amended by deleting subsection (j) and substituting:

(j)

(1) The commissioner shall not issue a permit under this section for the disposal of coal ash, or for the expansion of an existing coal ash disposal facility, unless the plans for the disposal facility include a liner and a final cap.

(2) This subsection (j) does not apply to:

(A) The use of coal ash for fill;

(B) An agricultural use;

(C) An engineered use as a feedstock to produce a product;

(D) A wastewater treatment unit; or

(E) The disposal of coal ash in connection with a use described in this subdivision (j)(2) and as authorized by the department pursuant to this part.

(3) This subsection (j) does not prevent the commissioner from issuing a permit for the disposal of coal combustion residuals in a coal combustion residuals disposal unit in accordance with rules adopted by the board.

SECTION 9. Tennessee Code Annotated, Title 68, Chapter 211, Part 1, is amended by adding the following as a new section:

(a) The department may recover against a person the department's direct and indirect costs, including administrative costs, incurred through the regulation of coal combustion residuals disposal units as provided by rules adopted by the board pursuant to this part.

(b) Board rules providing for cost recovery under this section must establish an annual cap and may include costs associated with permitting, oversight, supervision, investigation, regulation, and remediation activities relative to coal combustion residuals disposal units.

(c) The department shall not assess fees for coal combustion residuals disposal units under title 68, chapter 203, if the department seeks recovery of its costs pursuant to this section.

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.